

STATE OF NEW YORK

9595 -- A

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. SANTABARBARA -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the private housing finance law, in relation to enacting the "employer-assisted housing matching grant act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "employer-assisted housing matching grant act".

3 § 2. Legislative findings and intent. The legislature hereby finds
4 that the ability of New York's human services workforce to live near
5 their place of employment is essential to the stability of programs that
6 support individuals with disabilities, mental health needs, substance
7 use disorders, and other vulnerable populations. Non-profit provider
8 agencies certified, licensed, or contracted by the state face chronic
9 workforce shortages, exacerbated by the high cost of housing. To address
10 these challenges, this act establishes a program to match employer-pro-
11 vided housing assistance for care workers, thereby helping such workers
12 to remain stably housed and employed.

13 § 3. The private housing finance law is amended by adding a new
14 section 47-f to read as follows:

15 § 47-f. Employer-assisted matching grant program. 1. Definitions. For
16 purposes of this section, the following terms shall have the following
17 meanings:

18 (a) "Eligible employee" shall mean an individual employed by an eligi-
19 ble employer:

20 (i) who is employed in a qualifying care workforce position, including
21 but not limited to direct support professionals, certified nursing
22 assistants, licensed practical nurses, registered nurses, behavioral
23 health or human services staff, and early intervention and special
24 education therapists;

25 (ii) who works a minimum average of twenty hours per week;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (iii) whose household income does not exceed one hundred fifty percent
2 of area median income, or such lower limit as may be set by the employ-
3 er; and

4 (iv) who maintains a primary residence in the state of New York.

5 (b) "Eligible employer" means a nonprofit agency that is funded,
6 approved, certified, licensed, or contracted by the office for people
7 with developmental disabilities, the office of mental health, or the
8 office of addiction services and supports.

9 (c) "Employer contribution" shall mean cash assistance provided
10 directly by an eligible employer or reimbursed to an eligible employee
11 for documented housing costs, but shall not include in-kind benefits.

12 (d) "Program" means the employer-assisted housing match grant program
13 established pursuant to subdivision two of this section.

14 2. Establishment. The division of housing and community renewal, in
15 consultation with the office for people with developmental disabilities,
16 the office of mental health, and the office of addiction services and
17 supports, shall establish and administer an employer-assisted housing
18 matching grant program for nonprofit provider agencies qualifying as
19 eligible employers as described in this section.

20 3. Eligible employers. Eligible employers shall be eligible to partic-
21 ipate in the program. Two or more eligible employers may apply jointly
22 through a collaborative or umbrella organization.

23 4. Fund uses. Matching grant funds distributed by the program shall be
24 applied toward:

25 (a) residential security deposits;

26 (b) first month's rent;

27 (c) emergency rental arrears; or

28 (d) down payment and closing costs for a primary residence, provided
29 that the eligible employee agrees to maintain such residence for not
30 less than one year after purchase.

31 5. State match. (a) The state shall provide a matching grant equal to
32 fifty percent of the employer contribution made by an eligible employer
33 under the program on behalf of an eligible employee, up to a maximum of
34 three thousand dollars per eligible employee in any rolling twelve-month
35 period.

36 (b) Funds under the program shall be disbursed to the eligible employ-
37 er upon submission of documentation demonstrating payment to a landlord,
38 property manager, or settlement agent, as applicable.

39 (c) Eligible employees may receive assistance in multiple years,
40 provided that the aggregate does not exceed the rolling cap.

41 6. Administration. (a) The division of housing and community renewal
42 shall promulgate regulations and guidance governing the administration
43 of the program, including application procedures, documentation stand-
44 ards, allowable uses, and reporting requirements.

45 (b) The division of housing and community renewal may advance funds to
46 participating eligible employers or reimburse after eligible employer
47 payment, and may reallocate unused funds among eligible employers.

48 (c) Eligible employers participating in the program shall submit annu-
49 al reports detailing the number of eligible employees assisted, the type
50 of assistance provided, the aggregate amount of such eligible employer's
51 and state funds disbursed, and eligible employee retention outcomes to
52 the extent practicable.

53 (d) The division of housing and community renewal is authorized to
54 audit eligible employers' records and recover funds improperly used.

1 7. Coordination with other programs. Eligible employees under this
2 section shall not be prohibited from receiving other housing assistance
3 solely for their participation in the program.

4 8. Outreach and access. (a) The division of housing and community
5 renewal shall develop and disseminate informational materials to eligi-
6 ble employers and eligible employees regarding the availability of the
7 program.

8 (b) Application procedures shall ensure accessibility, including
9 language access and availability of evening and weekend assistance.

10 9. Appeals. The division of housing and community renewal shall estab-
11 lish an administrative process for review of determinations denying
12 employer or employee eligibility under the program.

13 § 4. Severability clause. If any clause, sentence, paragraph, subdivi-
14 sion, or section of this act shall be adjudged by any court of competent
15 jurisdiction to be invalid, such judgment shall not affect, impair, or
16 invalidate the remainder thereof, but shall be confined in its operation
17 to the clause, sentence, paragraph, subdivision, or section thereof
18 directly involved in the controversy in which such judgment shall have
19 been rendered. It is hereby declared to be the intent of the legislature
20 that this act would have been enacted even if such invalid provisions
21 had not been included herein.

22 § 5. This act shall take effect on the one hundred eightieth day after
23 it shall have become a law. Effective immediately, the addition, amend-
24 ment and/or repeal of any rule or regulation necessary for the implemen-
25 tation of this act on its effective date are authorized to be made and
26 completed on or before such effective date.